EDUCATORS' UNION OF ZIMBABWE
versus
THANDO BHEBHE
and
MOLLYN BANDA

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE: 12 February & 2 March 2026

Opposed Application: Judgment on Preliminary Points

M P Mamimine, for the applicant
M Gwisai, for the 1st & 2nd respondents

DEMBURE J:

[1] This is an urgent court application for a declaratory order and consequential relief filed in terms of s 14 of the High Court Act [*Chapter 7:06*] as read with r 59(6) of the High Court Rules, 2021. On 19 September 2025, this court, *per* KWENDA J, issued a provisional order interdicting the first and second respondents from holding themselves as the applicant's Acting Secretary General and the Acting President or President respectively and from purporting to hold any position within the applicant and issuing any correspondence on its behalf.

[2] The applicant now seeks a final declaratory and consequential relief. It mainly seeks that the Extraordinary Meeting held on 29 August 2025 be declared unconstitutional, null and void; that the first respondent is not the Acting Secretary General of the Applicant and does not hold any official position in the union and that the second respondent is not the Acting President or President of the Applicant and does not hold any official position in the union. Consequently, that the two respondents be interdicted from holding themselves out in the positions they purported to hold or any other positions within the applicant.

[3] The application was opposed by the respondents. They raised two preliminary points. On 12 February 2026, the court heard arguments on the points *in limine* and reserved judgment *sine die*. The parties requested the court to delay its determination on the preliminary points until after 19 February 2026, as they attempted to resolve the matter amicably. Unfortunately, the attempts to resolve the dispute came to nought.

FACTUAL BACKGROUND

[4] The parties have been in and out of court haggling over the leadership of the applicant. The applicant is a trade union duly registered in terms of s 24 of the Public Service Act [*Chapter 16:04*] as read with the Public Service (Formation and Recognition of Associations or Organisations) Regulations, S.I 45 of 1998, as amended by S.I 197 of 1998 (*"the Regulations"*).

[5] The first respondent is a female adult who was also the former Vice Secretary of the applicant. The second respondent is also a female adult. There is a pending matter before this court in Case No. HCBC269/25 where the applicant seeks a *declaratur* that she is not a member of the applicant.

[6] It is common cause that on 29 May 2025, this court issued an order by consent before TAKUVA J which ordered the Secretary General of the applicant to convene a National Executive Committee (*"NEC"*) meeting within 7 days of the unfreezing of the applicant's bank accounts and that the meeting had to discuss the road map to the National Conference of the Union and the agenda(s) to be discussed at the National Conference. The applicant averred that pursuant to the court order, the NEC of the applicant met and discussed the road map to the National Conference as well as the agendas to be discussed thereon. It also pleaded that the respondents attended and participated in the meeting.

[7] The respondents and two others filed a court application for a *declaratur* seeking to nullify the resolutions made at the NEC meeting of 11 June 2025. The National Conference was eventually held on 4 to 5 September 2025. It was alleged that there were elections which ushered in a new leadership of the applicant, including the deponent, who

was elected as the Secretary General. There were also constitutional amendments to the Union's 2021 Constitution, which were adopted.

[8] The applicant challenged the Extraordinary meeting held on 29 August 2025 by the respondents and others on the grounds that it was illegal and unconstitutional. It alleged that the respondents are attempting a coup against the union's constitution and legitimate structures.

[9] In their opposing affidavit, the respondents raised a point *in limine* that the matter was *lis pendens*. Another point of law was raised in their heads of argument that the applicant was not properly before the court, as the deponent lacked the applicant's authority to institute these proceedings.

[10] In turn, the applicant also raised a preliminary point that the first respondent's opposing affidavit contained hearsay evidence, particularly para(s) 14 and 15 and ought, therefore, to be struck out. After hearing the submissions from the parties' legal practitioners on the applicant's preliminary point, I dismissed it. Counsels then proceeded to address me on the two points *in limine* raised by the respondents, which are the issues the court must determine at this stage.

THE FIRST PRELIMINARY POINT

THE ALLEGED LACK OF AUTHORITY TO INSTITUTE THESE PROCEEDINGS

SUBMISSIONS MADE ON THE POINT OF LAW

[11] Mr *Gwisai* submitted that, as argued in para 11 of the respondents' heads of argument, the applicant is not properly before the court for lack of authority. He contended that there was lack of authority by the appropriate organ of the applicant. It was stated that this was a point of law that was not raised in the notice of opposition but in the heads of argument and could be raised at anytime. I was referred to the unreported judgment by NDUNA J, handed down on 8 October 2025, in the case of *Educators Union of Zimbabwe & Anor* v *Mollyn Banda & Anor* HCBBC 269/25. The judgment deals with the question of who has the authority to litigate on behalf of the applicant. It was held in that case that under the applicant's 2021 constitution, it was only the NEC that had authority to

institute litigation. On that basis, the respondents argued that the authority provided at p 19 of the record from the National Standing Committee (*"NSC"*) was invalid. He submitted that it was obviously made in terms of the purported new constitution as amended, in particular s 7.6.2(w) at p 81.

[12] It was further argued that at p 64, it was clear that the said constitution was approved by the National Conference on 5 September 2025. That constitution must be compared with the 2021 constitution at p 124. There is a clear distinction as that at p 124 was approved by the Minister of Public Service, Labour and Social Welfare (*"the Minister"*) in December 2022 in terms of the Regulations, after amendments. There is also a certificate of recognition at p 20 granted on 29 January 2025 in terms of s 4/5 of the same Regulations. Counsel argued that the purported revised document, on its own, shows that it has not been approved by the Minister in terms of the amendments made thereto. Under s 6 of the Regulations, the corporate status of the applicant is derived from that recognition.

[13] Counsel further submitted that in terms of s 3 of the Regulations as read with s 10, there is a list of requirements that a recognised union or association must comply with. In this case, without the said amendments having been registered by the Ministry, they do not come into effect yet. To have an interpretation that would allow recognised unions to unilaterally vary and change their constitutions without the approval of the same or recognition of the same by the Minister would subvert the fundamental purpose of the Regulations. It was for those reasons that it was argued that the provision that had been relied upon was from an invalid constitution in the sense that it is not yet registered or recognised in terms of s 3 of the Regulations and those Regulations generally. In terms of the recognised 2021 Constitution, only the NEC has the authority to litigate and not the NSC. That is what the court, *per* NDUNA J, upheld in the *Educators Union of Zimbabwe & Anor* case.

[14] On the other hand, Ms *Mamimine* submitted that the decision of the court before NDUNA J was relevant to the former constitution of the applicant. She argued that the amended constitution is valid and now applicable. A reading of the Regulations does not support

that an amended constitution ought to be re-registered. The respondents had not pointed to the relevant provision in that statutory instrument to show that their submission is based on which section exactly. In s 3, there is no requirement whatsoever for the re-registration of an amended or reviewed constitution.

[15] She maintained that the 2025 reviewed constitution was applicable and relevant. In terms of that constitution, the NSC has the authority to authorise litigation on behalf of the applicant. She also contended that the respondents who are before the court accepted the amendment of the Constitution in their pleadings that have been filed before this Court, in the opposing affidavit to the chamber application for leave to appeal the judgment by NDUNA J under Case No. HCBC 1214/25. It was submitted that the respondents therein accepted that the applicant amended its constitution and that the issue of whether or not the NSC can authorise proceedings was no longer relevant, as evidence was clear that the constitution had been amended. They could not approbate and reprobate. They could not accept the reviewed constitution when it suited them and deny it when it did not. It is a trite point of the law that a litigant cannot approbate and reprobate. Reference was made to para(s) 5 to 7 thereof, which dealt with mootness.

[16] Counsel went on to argue that a closer look at the amendments shows that the new constitution does away with the NEC, as the only structure which had authority to institute proceedings. The decision of this court was based on its interpretation of the unamended 2021 constitution. In para 7, they had said that the provisions that are the subject of the intended appeal had been repealed. Hence, there was no more live controversy. Mr *Gwisai* objected to the counsel's submissions relating to the averments in the other matter. I shot down the objection, as Ms *Mamimine* was simply referring to pleadings already part of the court records. In any event, it is established that a court is at liberty to refer to its own records in other proceedings to take note of their contents: See *Mhungu* v *Mtindi* 1986 (2) ZLR 171 (S).

[17] Ms *Mamimine* reiterated that the proceedings were proper, as the deponent to the founding affidavit was properly given authority in terms of the constitution, which was amended in September 2025. There is no need for the reviewed constitution to be

approved by the Minister. No section had been referred to. There is no section whatsoever requiring re-registration or the registration of an amended constitution under SI 45 of 1998. It was accordingly submitted that the preliminary point had no merit and ought to be dismissed.

[18] In reply, Mr *Gwisai* maintained that the amendments to the union's constitution must be approved by the Minister. He referred to s 3 of the Regulations and argued that it set out the requirements that a union that seeks recognition must comply with. It must adopt a written constitution which will then provide for the items that are listed in para (s) (a) to (o) of subsection (2), including the amendment of the constitution, the right of members and so forth. There is a provisional recognition where, under s 4, the Minister will see whether the requirements of s 3 are met. There will be a final recognition under s 5. Under s 10, the union may have its recognition withdrawn or suspended. One must also consider s 11, which provides for what are considerations relating to recognition, variations, suspension. One of the considerations to be looked at is whether the constitution of an association or organization confirms with the requirements of s 3. There is, therefore, an ongoing obligation on a union to ensure that it remains within the parameters of s 3. And that is why, therefore, if there are amendments that are done, they must remain consistent with s 3. That was the reason why the approval of the Minister would be required. A reading of all those sections makes it clear that the legislative intention behind SI 45 of 1998 is clearly one that seeks to ensure that recognised associations remain compliant with the framework set by the legislature, including, in particular, under s 3. What can be implied by reading all those provisions is the requirement for approval of any amendments.

ANALYSIS

[19] It is a well-established principle of corporate and procedural law that legal entities can only institute proceedings through persons who are lawfully empowered to act on their behalf. This principle has been held not be a technicality but a fundamental rule that protects not only the integrity of corporate decision-making but also the courts themselves. Without such authority to act on behalf of the legal entity, the entire

proceedings cannot stand. They are a nullity and must be struck off the court's roll. This position was remarkably restated in *The Trustees for the Time Being of Oliver Mandishona Chidawu Trust* v *Broadway Investments (Pvt) Ltd* SC 09/26 at pp 6-8, where MUSAKWA JA held that:

> "9. **The law is clear and uncompromising that acts done without lawful authority are void *ab initio* and are, in law, nullities**.
> 10. In *Madzivire & Ors v Zvarivadza & Ors* 2006 (1) ZLR 514 (S) at 516 B-E, CHEDA JA said:
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> > "**It is clear from the above that a company, being a separate legal *persona* from its directors, cannot be represented in a legal suit by a person who has not been authorised to do so. This is a well-established legal principle, which the courts cannot ignore**. **It does not depend on the pleadings by either party**. The fact that the first appellant is the managing director of the fourth appellant does not clothe him with the authority to sue on behalf of the company in the absence of any resolution authorising him to do so. In *Burstein v Yale* 1958 (1) SA 768(W), it was held that the general rule is that directors of a company can only act validly when assembled at a board meeting."
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> 11. As can be noted from the case of *Madzivire & Ors v Zvarivadza & Ors supra*, **where a company institutes proceedings through persons who are not lawfully empowered to act on its behalf, any instrument they purport to make, and any proceedings founded upon it, lack legal existence. This is not a technicality; it is a fundamental rule of corporate and procedural law that protects the integrity of corporate decision-making and the courts themselves.**
> ….Under these circumstances, there was nothing in law for the court a quo to receive or act upon as **a court cannot, by ignorance or oversight, supply the missing element of authority and thereby breathe life into an otherwise meaningless instrument**. See *Macfoy v United Africa Co. Ltd* (*supra*).
> 13. **The consequences of that foundational defect are immediate and categorical. Once it is shown that the application was instituted without lawful authority, the entire proceedings collapse**. The rule that "you cannot put something on nothing and expect it to stay there" is particularly apposite, every step taken in reliance on the invalid resolution is itself tainted and incapable of producing valid judicial outcomes. The court *a quo*'s failure to decline jurisdiction or to strike the matter off the roll upon the clear challenge to authority therefore constituted a misdirection of law. By entertaining and adjudicating the application, the court a quo effectively permitted the fruits of an unlawful act to be litigated, an approach the law does not allow.
> 14. Having regard to these principles and the uncontroverted factual matrix, **the correct and only competent judicial response was to treat the proceedings as a nullity and to strike the matter from the court's roll**. The appeal was allowed for that reason alone. It was unnecessary and improper for this Court to consider any other issues once it became clear that the application had been filed without lawful authority. That defect alone disposed of the matter. Striking the matter off the roll with costs simply returned the parties to the position they would have been in had the invalid application never been made and upheld the basic rule that **no legal process can stand where there is no proper authority to institute it**." (*my emphasis*)

[20] The above remarks equally apply to other legal entities, such as the applicant. No valid legal proceedings can exist where the deponent lacks authority to act on behalf of the entity. I must, therefore, determine whether or not the deponent to the applicant's founding affidavit, Tapedza Zhou, had the requisite authority to institute these proceedings on behalf of the Union, the applicant. There was no dispute that the deponent sought to derive his authority to institute these proceedings from the resolution at p 19 of the record. The resolution was passed by the National Standing Committee (*"the NSC"*) of the applicant at a meeting held at Harare on 15 September 2025. The dispute whether this is a valid authority from the applicant was largely centred on whether it should be the National Executive Committee (*"the NEC"*) in terms of the 2021 constitution as held by this court in the *Educators' Union of Zimbabwe & Anor* case (*supra*), *per* NDUNA J, or it should be the NSC in terms of the amended 2025 Constitution of the applicant, which should validly authorise any litigation on behalf of the union.

[21] There was no dispute that the amendments incorporated on 5 September 2025 were not approved or registered with the Minister. The parties differed sharply as Ms *Mamimine* argued that no approval or registration of an amendment to the constitution was required. On the other hand, Mr *Gwisai* insisted that, in terms of s 3 and the Regulations generally, such approval is required before the amendment to the constitution may have any legal effect. I must, therefore, determine first which constitutional provisions should be applicable, as they provide different provisions relating to who ought to have the authority to authorise litigation on behalf of the applicant. In doing so, I must turn to the interpretation of s 3 in the context of the whole Regulations.

[22] It is trite that statutory provisions are not interpreted in isolation from the whole instrument. They must be interpreted in their context. The cardinal canon of interpretation is well-established. It is the literal or golden rule of interpretation that where the language in a statute is clear and unambiguous, words must be given their ordinary and grammatical meaning unless to do so would lead to an absurdity, or a repugnancy, or inconsistency with the intention of the legislature. The position was restated in *Pwanyiwa* v *Shamva Gold Mine* SC 34/24, where at pp 6-7, MAVANGIRA JA said:

"In *Godfrey Tapedza & 9 Ors v Zimbabwe Energy Regulatory Authority & Anor* SC 30/20, this Court, *per* HLATSHWAYO JA, as he then was, stated as follows at p 4:

> "It is an established principle of law that when interpreting a statute, the first canon of interpretation to be applied is the golden rule of interpretation. This rule is to the effect that where the language used in a statute is plain and unambiguous, it should be given its ordinary meaning unless doing so would lead to some absurdity or inconsistency with the intention of the legislature. A provision of a statute should be given a meaning which is consistent with the context in which it is found."

The learned Judge also aptly cited *Chegutu Municipality* v *Manyora* 1996 (1) ZLR 262 (S) at 264 D - E where MCNALLY JA stated the following:

> "There is no magic about interpretation. Words must be taken in their context. The grammatical and ordinary sense of the words is to be adhered to, as LORD WENSLEYDALE said in *Grey v Pearson* (1857) 10 ER 1216 at 1234, 'unless that would lead to some absurdity, or some repugnance or inconsistency with the rest of the instrument, in which case the grammatical and ordinary sense of the words may be modified so as to avoid that absurdity and inconsistency, but no further.'"

[23] The respondents did not specify the exact provision of s 3 of the Regulations, which requires that an amendment to the constitution of the applicant must be approved or registered by the Minister. The relevant s 3 of the Regulations, as amended by SI 197/1998, states as follows:

> "**Formation of associations or organisations**
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> 3 (1) Any group of members of the Public Service may form an association or organization and any group of associations or organisation, and any group of associations or organisations may form a federation of associations or organisations.
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> (2) **Every association or organisation seeking recognition shall**, within nine months of the date of commencement of these regulations or, if it is formed after such date, within six months of its formation, a**dopt a written constitution which shall provide for** –
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> (a) the qualifications for membership of the association or organization, including membership dues, if any; and
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> (b) the right of any person to membership if he is prepared to abide by the rules and conditions of membership; and
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> (c) the number of the office bearers of the association or organization, their functions, the manner of their appointment or election and the submission to the Minister, as soon as practicable after the appointment or election of any office bearer, of the minutes of the meeting at which any office bearer was appointed or elected; and
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> (d) the holding of annual general meetings; and
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> (e) the submission of any office bearer to re-appointment or re-election if a petition is made –
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> (i) within one year of his appointment or election by not less than three-quarters; or

(ii) later than one year of his appointment or election by not less than one quarter;

of the members of the association or organization:

(f) the call and conduct of meetings of members or representatives of the members of the association or organization; and

(g) the production of discrimination against any member on the grounds of race, tribe, place of origin, political opinion, colour, creed or gender; and

(h) the keeping of books of accounts, the submission of such books of accounts for auditing within three months of the end of each financial year of the association or organisation, and the making available to members of the association or organization of certified copies of audited accounts and the auditor's report thereon; and

(i) consultations between branches of the association or organization and the members thereof before such association or organization —

(i) concludes any agreement referred to in paragraph (f) of section 4 of the Joint Council regulations;

(ii) embarks upon any new programme likely to affect the rights and interests of its members:

(iii) increases any fee, levy or other dues payable by its members;

(iv) appoints a representative to represent its members on the apex council; and,

(j) the prohibition of the use of the funds of the association or organization for electioneering on behalf of any office bearer of the association or organization; and

(k) the equitable sharing of the funds of the association or organization among its branches; and

(l) the maintenance of a register of members and a record of the dues, if any, paid by each member; and

(m) the giving to any person who is refused membership or who is expelled of the reasons for such refusal or expulsion; and

(n) **the amendment of the constitution**; and

(o) the winding up of the association or organization and the distribution of its property upon its dissolution." (*my emphasis*)

[24] The language used in s 3 is very clear and unambiguous. Subsection (1) of s 3 provides for the formation of a federation of associations or organisations by a group of members of the Public Service. It has nothing to do with the registration or approval of constitutional amendments by a recognised trade union or any association.

[25] Further, subsection (2) of s 3 clearly relates to the requirement for an association or organisation, in this case a trade union, to adopt a written constitution within the prescribed period upon its formation before it can seek recognition. The provision further prescribes mandatory provisions that must be in every constitution of an association or organisation formed by members of the Public Service. These include, *inter alia*, provisions relating to the amendment of the constitution, the holding of meetings of

members and the winding up of the association. These provisions are all required to be incorporated into every constitution as shown by the use of the conjunctive word "and" in para(s) (a) to (o) of subsection (2).

[26] There is also no doubt that s 3(2) does not provide for the approval or registration of any amendments to the constitution of an already recognised organisation by the Minister. The said provisions clearly state that every association must adopt a written constitution containing all the mandatory provisions before it can be recognised. There is nothing, clearly, in s 3 which requires that an association with a certification confirming its recognition by the Minister, as the applicant, to have any amendments of its constitution approved by the Minister. The adoption of a literal interpretation of s 3 does not lead to any absurdity. The court cannot remake the law under the guise of interpretation. The legislature must have intended what it expressed in the clear language of the statute.

[27] I do not agree with Mr *Gwisai*, therefore, that s 3 must be read to provide that an amendment of the constitution is required to be approved or re-registered by the Minister to have legal effect. The language of the provision does not permit me to do so. I accordingly associate myself with the remarks in *Zimbabwe Revenue Authority v African Cigarette Company (Pvt) Ltd & Anor* SC 15/26 at p 17 para 42, where GUVAVA JA said:

> "At this juncture, it is imperative to be reminded that **courts are not at liberty to re-write legislation under the guise of interpretation;** rather, courts are guided first and foremost by the ordinary, grammatical meaning of the text. Only where such meaning produces a result so unreasonable as to border on the absurd, are courts permitted to summon broader interpretive tools in the pursuit of justice. In *Zimbabwe Revenue Authority v Mukahiwa* SC 64/24 at p 6, UCHENA JA reiterated the sentiments expressed by MATHONSI JA in *John Basera v The Registrar of the Supreme Court of Zimbabwe & Ors* SC 35/22, where he aptly remarked:
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> > "The resolution of the matter involves a purely interpretative exercise. On a literal interpretation, "if the words of a statute are clear then one must follow them even if they lead to a manifest absurdity. The court has nothing to do with the question whether the legislature has committed an absurdity." See *R* v *Judge of the City of London Court* [1892] 1 QB 273 at 290, and *Chegutu Municipality* v *Manyora* 1996 (1) ZLR 262 (S) at 264D-E."
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> As has been shown, a literal interpretation of s 126 does not lead to an absurdity. It must therefore be applied as is. **It is for the legislature to step in and amend the legislative provision if the interpretation does not reflect its intention**." (*my emphasis*)

[28] In *casu*, s 3 is very clear as to the parameters of what it covers. It does not extend to requiring the approval of an amendment to the constitution of a recognised association or

trade union by the Minister. The section must be applied as it is. Accordingly, the amendment of the applicant's constitution adopted in September 2025 cannot be invalidated by the alleged non-approval by the Minister. The reliance on s 3 as the basis of that argument is legally untenable.

[29] I have also considered the provisions of ss 4 to 11 of the Regulations referred by Mr *Gwisai,* but found nothing to justify the argument that the applicant ought to have re-registered or have the amendments to the 2021 constitution adopted in September 2025 approved by the Minister before they could have legal effect. There is nothing in those sections to support that argument. The argument is flawed in my view. Sections 4 and 5 provide for the provisional and the confirmation of recognitions by the Minister, respectively. The provisions of s 10 clearly speak to the power of the Minister to suspend or withdraw the recognition of an organisation or association. Section 11 then provides what the Minister is bound to consider before taking a decision relating to the recognition, variation, suspension or withdrawal of recognition of associations. One of the considerations following the repeal of s 11(2)(b) is that he or she must "determine whether the constitution of the association or organisation conforms with the requirements of section 3." The Minster, therefore, has the statutory power to oversee the operations of these recognised organisations and if there is reasonable cause to believe that there have been any violations as set out in s 10(1), he or she is entitled suspend or withdraw the recognition after affording the organisation an opportunity to be heard. This power accordingly ensures that even though there is no specific provision regulating the exact nature of the amendments to the constitution which maybe made, they must remain those which must not derogate from the mandatory provisions set out in s 3. These provisions do not require that the amendment be approved or registered by the Minister.

[30] Given my view above, I find that the amendments proposed and adopted by the applicant at its National Conference cannot be invalidated by the alleged non-approval or non-registration by the Minister. They have legal effect the moment they are adopted by the National Conference in accordance with the provisions of the union's constitution. There is no statutory requirement for the registration or approval of the amendments to the applicant's constitution by the Minister.

[31] The decision by this court in *Educators Union of Zimbabwe* (*supra*), *per* NDUNA J, was clearly speaking to the provisions of the 2021 constitution before the amendments effected on 5 September 2025. The court differentiated the roles of the NEC and the NSC in respect of the constitution before the amendments in September 2025. It is common cause that the said matter was heard on 31 July 2025, and the judgment handed down on 8 October 2025 could not have been speaking to the amended constitution, as the amendments were not yet in place when the matter was heard. To that extent, the said judgment is unhelpful to the respondents. It cannot assist me in this matter either. The findings thereof related to the body with authority to authorise litigation within the applicant's organisation are irrelevant to the current issue before me. The decision that the NEC alone possessed the power to authorise litigation was clearly based on the 2021 constitution.

[32] The amended constitution of the applicant, which was adopted on 5 September 2025, is clear as to which body has the authority to pass a resolution for any litigation on behalf of the applicant. The National Standing Committee (*"the NSC"*) is the sole body that may validly authorise litigation for the applicant. See s 7.6 of the constitution at p 81. The relevant provision stating the powers and functions of the NSC reads:

> "**7.6. Powers and Functions of the National Standing Committee**
> 7.6.1. **The powers** and duties **of the National Conference shall be delegated to the National Standing Committee** in between meetings of the National Conference.
> 7.6.2. Without prejudice to the generality of its powers, **the National Standing Committee shall**:
> …
> (w) **Formulate resolutions and appoint representative (s) in any litigation on behalf of the Union**. (*my emphasis*)

[33] Thus, s 7.6.2(w) of the constitution as amended put the issue to rest as regards the body with authority to pass resolutions and authorise litigation on behalf of the applicant. It is now without doubt, the NSC. In terms of the applicant's governance structure set out under s 7.1 of the constitution, as amended in September 2025, there no longer exists the National Executive Committee (*"the NEC"*). The arguments the court had to deal with before NDUNA J in *Educators Union of Zimbabwe* (*supra*) no longer arise. It is trite that the court must respect the constitutions made by autonomous associations and give effect to their provisions. What the members agreed among themselves as to how their

organisation is to be governed must be enforced. The terms of their unambiguous constitutional provisions must accordingly be strictly enforced. See *Bishop Reverend Doctor Isaac Soda* v *The Evangelical Church of Zimbabwe & 5 Others* HH359/16 at p 10.

[34] In any event, the respondents cannot adopt two inconsistent positions in court proceedings. It is trite that a party cannot approbate and reprobate. See *Alliance Insurance* v *Imperial Plastics (Pvt) Ltd & Anor* SC 30/17, where MALABA DCJ (as he then was) said:

> "It is trite that where there are two courses of action open to a litigant, as the appellant had, to either challenge the constitutionality of Article 34 or apply for the setting aside of the arbitral award in terms of that provision, and it unequivocally elected to take one of them, it cannot turn round afterwards and take the other course of action. The point was made in *S* v *Marutsi* 1990 (2) ZLR 370 at p 374B that:
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> > "It is trite that a litigant cannot be allowed to approbate and reprobate a step taken in the proceedings. He can only do one or the other, not both."

There is no doubt that in the first respondent's opposing affidavit under Case No. HCBC 1214/25, in particular para(s) 5-7, the respondents recognised the constitutional amendments and argued that it was now moot to decide whether it is the NEC or the NSC which has the power to authorise litigation. In the said affidavit, the first respondent stated as follows:

> "Mootness
> 5. It is further averred that **the present application is now moot and has been overtaken by events outside the record**. Applicants intend to appeal against this court's ruling based on the interpretation of the Applicant's 2021 Constitution which has been amended.
> 6. The founding affidavit makes it loud and clear that Applicant amended its 2021 constitution in September 2025. A closer look at the amendments show that the new Constitution does away with the National Committee- the only structure which had authority to institute legal proceedings. The decision of this court was based on its interpretation of the unamended 2021 Constitution of the Applicant.
> 7. **The provisions that are subject of the intended appeal have been repealed, hence there is no more live controversy. A decision of this court in the present matter serves no purpose. It will be merely academic**. I am advised that the doctrine of mootness proscribes courts to determine matters which are academic, unless it is in the interest of justice. It is averred **no justice will be served by determining this matter, since the constitution has been amended**.
> 8. The application must be dismissed with costs." (*my emphasis*)

[35] In the above statements, the respondents took a very clear position that the constitution had been amended, rendering the matter on the interpretation of the 2021 constitution

before the amendment merely academic. I do not agree with the argument that these averments have been taken out of context. They constitute the respondents' pleaded position, which was never withdrawn. Clearly, from that position, the respondents have acknowledged that no live controversy exists anymore as to the authority to initiate proceedings following the amendments adopted in September 2025. They cannot accept that position when it suits them and then turn around when the same constitution is being enforced and argue that it is the NEC, as stated under the 2021 constitution, that can authorise litigation. Surely, they cannot blow hot and cold.

[36] The court has an unfettered discretion to refer to its own records and note their contents. See *Mhungu* v *Mkushi* (*supra*). The respondents cannot, therefore, seek to argue otherwise when they accepted in litigation before this court under oath, that the amendments do away with the NEC and that the decision of the court before NDUNA J was now of no consequence as the 2025 amendments clothed the NSC with the power to authorise litigation on behalf of the applicant. That should also resolve the issue. It ought not to arise.

[37] The deponent clearly had the authority to institute these proceedings, which was validly procured by the resolution of a competent authority, the NSC, in terms of the constitution as amended in 2025. The resolution at p 19 of the record is clearly valid. To that end, the argument that these proceedings are a nullity for lack of authority is unsustainable. The resolution speaks to the current proceedings. It clearly showed that the applicant is indeed aware of the proceedings and that the deponent was clothed with the authority to act on its behalf. The point of law taken by the respondents must accordingly fail. I dismiss it.

I will now turn to consider the second preliminary point, that of *lis alibi pendens*.

THE SECOND PRELIMINARY POINT

THE DEFENCE OF *LIS ALIBI PENDENS*

SUBMISSIONS MADE ON THE SPECIAL PLEA

[38] Mr *Gwisai* submitted that this matter is *lis pendens*. The requirements for this defence are trite in our jurisdiction. He referred me to para 10.2 of the respondents' heads of

argument, wherein the case of *ZINWA* v *Hippo Valley Estates & Anor* SC 55/19 was cited. He argued that the substance of this matter, together with the principal litigants, including the respondents, are substantially the same as in the matter that is already before this court under Case No. HCH 3497/25. The said application was attachedto the notice of opposition at p 182 of the record. The draft order is at p 269, where a *declaratur* is being sought. The *declaratur* being sought under para 2 is that the National Conference roadmap adopted by the National Executive meeting of 11 June 2025 did not comply with the High Court order under HCH 1948/25, and it was, therefore, *ultra vires* the constitution. It also states that the roadmap and the elections that were done are *ultra vires* the constitution of the first respondent and are null and void.

[39] Counsel further argued that in para 4 of the draft order, the respondents seek that all actions that were done by all those officers and officials of the union involved were *ultra vires* the constitution. The consequential relief is for the NEC under the 2021 constitution to sit within seven days and comply with the order by TAKUVA J. He contended that the main declarator is actually to the effect that the resolutions of the National Executive Committee meeting of 11 June 2025 were *ultra vires* the constitution and, therefore, invalid. It is the very same National Executive Meeting that gave birth to the National Conference, which is being relied on in the present application. He further submitted that the foundation of this application was based on a National Conference and elections, which are founded on the resolutions of the meeting of 11 June 2025. It is that meeting of 11 June 2025 and its outcome that is already being challenged before this court. There was a real danger of a multiplicity of proceedings.

[40] Mr *Gwisai* went on to argue that the major relief sought in this application at p 159 is that the first and second respondents do not hold any official position in the union. The principal litigants in both matters are the same. The first two respondents here are the first applicants in the declaratory matter. The others are just nominal litigants. The applicant, by bringing this application seeks to pre-empt the main declaration application, which should put to rest once and for all the issue of who the legitimate leaders of this Union are between the two factions that are fighting. It was further argued that for that reason, this application was invalid, improper and should be dismissed. Counsel argued that the

proper exercise of the court's discretion, upon being satisfied that the requirements are satisfied, should be to dismiss the application.

[41] Conversely, Ms *Mamimine* argued that the matter is not *lis pendens*. She contended that the matter is different from the matter that was filed under HCH 3497/25. The parties in this case and the parties that are under HCH 3497/25 are completely different. In Case No. HCH 3497/25, there are 19 respondents, whilst in this case, we only have two respondents. It does not matter whether the other parties were to either confirm or stand guided by the court's decision. That does not make the parties irrelevant to the proceedings. They remain relevant and ought to be considered in the consideration of the parties that are before the court.

[42] Counsel further contended that, in respect of the relief that is being sought, the applicant in this case seeks to have the extraordinary meeting held on 29 August 2025 convened without any constitutional basis to be set aside. A reading of the reliefs actually points to the fact that the two matters are not connected. She referred the court to the provisional order at p 169 and at p 170, which shows the final relief being sought by the applicant. The relief is not the same as the relief that is being sought in HCH 3497/25, which the respondents had stated relates to the roadmap meeting which was held on 11 June 2025. The parties do not seek the same relief. The matters are also not founded on the same cause of complaint. The cause of the complaint in this case is an extraordinary meeting held on 29 August 2025, which, in the applicant's submission, has no constitutional basis, whilst the cause of the complaint in HCH 3497/25 is the holding of a meeting on 11 June 2025. She finally submitted that the point does not have any merit and ought to be dismissed.

ANALYSIS

[43] The requirements for the defence of *lis alibi pendens* are a matter of settled law. There are that: (i) the actions pending before a court of competent jurisdiction must be between the same parties; (ii) they must concern the same subject matter, and (iii) they must be founded on the same cause of complaint. Thus, in *ZINWA* v *Hippo Valley Estates & Anor* (*supra*) at pp 7-8, MAVANGIRA JA aptly stated as follows:

> "Generally, *lis alibi pendens* is a defence that is brought where an action is brought against one party notwithstanding the fact that the same matter is pending before a court of competent jurisdiction. Cilliers AC, Loots C and Nel HC *Herbstein & Van Winsen***,** *The Civil Practice of the High Courts and the Supreme Court of Appeal of South Africa* (5th edn, Juta & Co Ltd, Cape Town, 2009) at page 310 express the following view:
>
> > "If **an action is already pending between parties and the plaintiff brings another action against the same defendant on the same cause of action and in respect of the same subject matter**, whether on the same or in a different court, it is open to the defendant to take the objection of *lis pendens*, that is, that another action respecting the identical subject matter has already been instituted. Thereupon the court, in its discretion, may stay one action pending the decision of the other."
>
> The requirements of *lis alibi pendens* are described as follows by the learned authors:
>
> > "The requisites of a plea of *lis pendens* are the same with regard to the person, cause of action and subject matter as those of a plea of *res judicata*, which, in turn, are that **the two actions must have been between the same parties or their successors in title, concerning the same subject matter and founded upon the same cause of complaint**." (*my emphasis*)

[44] Applying the above principles, it is clear that the two pending matters are not between the same parties. In the matter under Case No. HCH 3497/25, while the present respondents and the applicant are also parties, there are other applicants, namely Sikoshiwe Gumbira and Faith Joicy Ncube, who are not before me in this case. The same relates to the other eighteen (18) respondents who are not parties in the matter before me. The litigating parties in the two pending matters are completely different. I agree with Ms *Mamimine* that it does not matter that the other applicants simply adopted the founding affidavit done by the first applicant or that the other respondents did not oppose the application. They remain parties to those proceedings. Those other parties are not before me. The first prerequisite of the defence of *lis pendens* has not been met.

[45] The second requirement was also not satisfied. The two pending matters do not concern the same subject matter. The court application for a *declaratur* under HCH 3497/25 concerns mainly the resolutions of the National Executive Committee meeting held on 11 June 2025, following the order by TAKUVA J, in particular the ones relating to the National Conference roadmap and the Elections policy. The applicants accordingly seek a declaratory order that the National Conference Roadmap and the Elections Policy adopted thereat and any actions taken in fulfilment of such roadmap and policy, be declared *ultra vires* the constitution of the first respondent (the applicant herein) and, therefore, null and void. The consequential relief is for the convening of a proper

National Executive meeting in terms of the consent order. See p 269 of the record for the draft order thereof.

[46] On the other hand, the subject matter in relation to the application before me concerns the Extraordinary meeting convened and held on 29 August 2025 by the respondents, and the leadership positions they purportedly assumed therefrom. At p 159, the applicant seeks a declaratory order that the said Extraordinary meeting be declared unconstitutional, null and void. The further orders are that the respondents be declared not the Acting Secretary General and Acting President or President of the applicant, respectively, and the consequential relief is that of a final interdict. The reliefs sought are even different. The matters are not related at all.

[47] As regards whether the third requirement of *lis pendens* has been satisfied, it cannot seriously be argued that the two matters are founded on the same cause of complaint or cause of action. The matter in Case No. HCH 3497/25 is founded on the cause of complaint that the resolutions passed at the National Executive Committee meeting held on 11 June 2025, in particular the National Conference Roadmap and the Elections Policy, were *ultra vires* the Constitution of the applicant and not in compliance with the consent order and, therefore, were a nullity. It was also alleged that any actions taken in fulfilment of the said resolutions would be equally a nullity. But in the case before me, the cause of the complaint is founded on what is alleged to be the unconstitutional Extraordinary meeting held by the respondents and others on 29 August 2025. It is alleged that the meeting was unprocedural and was not conducted in terms of the constitution or the consent order. It being alleged that the respondents do not hold any leadership positions and could not validly convene any meeting and pass valid resolutions for the applicant. Clearly, the argument that these two matters are founded on the same cause of action is completely baseless.

[48] The second point was, in my view, frivolous or vexatious and ought not to have been taken. Unfortunately, the frivolous defence has unnecessarily detained the court, thereby delaying the determination of the matter on the merits. The special plea of *lis pendens* is

utterly groundless and without any foundation. It must suffer the same fate as the first point *in limine*.

[49] The two preliminary points taken by the respondents have no merit. They all cannot succeed. As regards the costs, they shall remain in the cause. The matter must now proceed to be determined on the merits.

[50] It is accordingly ordered as follows:

1. The preliminary points raised by the respondents be and are hereby dismissed.
2. The matter shall proceed to be determined on the merits.
3. The Registrar is hereby directed to have the matter set down for hearing and determination on the merits.

DEMBURE J: ……..

Tsunga Law International, applicant's legal practitioners
Matika, Gwisai & Partners, respondents' legal practitioners